

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2026PRTR068718: IN RE TRUST OF WOLFGANG SCHMIDT AND WALTRAUD F
SCHMIDT DATED SEPTEMBER 15, 2004**

09/24/2026 in Department J6

**Hearing on Petition for an Order to Confirm Validity of Trust and Confirm Assets to
Revocable Trust**

Notice is insufficient. JP Morgan Chase Bank, N.A. has not been served the mandatory Notice of Hearing on Petition to Determine Claim to Property (DE-115) in the manner required by Probate Code section 851(a).

Petitioner to file proof of statutorily sufficient service of notice.

When the notice is statutorily sufficient:

In the present case, the bank account is not listed as an asset of the trust in the trust.

The bank account did not exist at the time the trust was executed.

Nowhere in the trust is there a declaration that the trust owns the specific property at issue. The account is not a trust asset.

The court intends to deny the petition.
